Alexandria Gazette.

VOL. XCIV.---NO. 239. ALEXANDRIA, VA., SATURDAY EVENING, OCTOBER 7, 1893. PRICE 2 CTS.

MEDICINAL.

HEALTHY EXERCISE —fresh air and proper food, help to keep a woman in good condition. It's insufficient for some, weakened or borne down as they are by the ailments and irregularities peculiar to their sex.

They're easily helped, though; there's a *remedy* in Dr. Pierce's Favorite Prescription—that will build up and cure every enfeebled woman. It's the prescription of a physician; has been tested in thousands of cases, and never found wanting.

The only *risk* that's taken is that of the manufacturers who promise to refund the money if no benefit is experienced.

This "Prescription" reaches the origin of the trouble. Dizziness, fainting spells, and nervous disorders, such as sleeplessness, chorea or St. Vitus's dance, depend upon the irregularities and displacements of the special structures—the "Favorite Prescription" cures by regulating and correcting these functions and organic changes.

Dr. Sage's Remedy positively *cures* Catarrh.

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A New and Complete Treatment, consisting of SUPPOSITORIES, Capsules of Ointment and two Boxes of Ointment. A never-failing Cure for Piles of every nature and degree. It makes an operation with the knife or injections of carbolic acid, which are painful and seldom a permanent cure, and often resulting in death, unnecessary. Why endure this terrible disease? We guarantee 6 boxes to cure any case. You only pay for benefits received. $1 a box, 6 for $5. Guarantees issued by our agents.

CONSTIPATION Cured, Piles Prevented, by Japanese Liver Pellets the great LIVER and STOMACH REGULATOR and BLOOD PURIFIER. Small, mild and pleasant to take, especially adapted for children's use. 50 Doses [illegible] GUARANTEES issued only by

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Alexandria, Virginia.

MAGNETIC NERVINE.

is sold with written guarantee to cure Nervous Prostration, Fits, Dizziness, Headache and Neuralgia and Wakefulness, caused by excessive use of Opium, Tobacco and Alcohol; Mental Depression, Softening of the Brain, causing Misery, Insanity and Death; Barrenness, Impotency, Lost Power in either sex, Premature Old Age, Involuntary Losses, caused by over-indulgence, over-exertion of the Brain and Errors of Youth. It gives to Weak Organs their Natural Vigor and doubles the joys of life; cures Leucorrhoea and Female Weakness. A month's treatment, in plain package, by mail, to any address, $1 per box, 6 boxes $5. With every $5 order we give a Written Guarantee to cure or refund the money. Circulars free. Guarantee issued only by our exclusive agent.

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TEETH

—Are the best of course, but if you haven't them the next best thing is to have teeth as near natural as science can make them. Ours are that way—perfectly natural, comfortable, enduring and capable of deceiving the strictest scrutiny. The very best materials that money can buy, the very best instruments and appliances that man can make, the most improved methods that long experience can suggest and the very best dentists to be secured are a few of the "WHYS" which enable us to turn out these most natural teeth.

VERY BEST TEETH, $8.00.

Extracting, 25c With gas or zono, 50c
Cleaning 75c
Silver Fillings, 75c Platina Fillings, $1.00
Gold Filling according to size.
Gold Crowns, ... $7.50

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Baltimore Office—No. 1, corner Baltimore and Charles streets.

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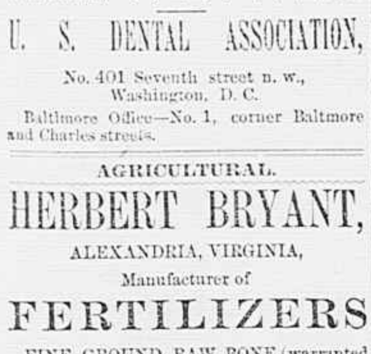
Do you wear them? When next in need try a pair.

Best in the world.



If you want a fine DRESS SHOE, made in the latest styles, don't pay $6 to $8, try my $3, $3.50, $4.00 or $5 Shoe. They fit equal to custom made and look and wear as well. If you wish to economize in your footwear, do so by purchasing W. L. Douglas Shoes. Name and [illegible]

For sale by H. L. SIMPSON'S SONS, 104 north Royal street

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X. O. DUST! X. O. DUST!

The New Great Discovery, X. O. Dust, for the relief from the Texas or Buffalo Fly on cattle, just received and for sale by

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Alexandria Gazette.

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Tri-Weekly one year $4; six months $2; three months $1.

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Contract advertisers will not be allowed to exceed their space unless the excess is paid for at transient rates, and under no circumstances will they be allowed to advertise other than their legitimate business in the space contracted for.

Marriage and death notices must be paid for in advance.

Resolutions in memoriam, of thanks, tributes of respect, resolutions adopted by societies or persons, unless of public concern, will only be printed in this paper as advertisements.

The GAZETTE office is connected with the Telephone Exchange. Advertisements, orders for the paper, news or any information or business can be sent by telephone.

[Entered at the Postoffice Alexandria, Virginia, as second-class matter.]

The Powers of County Supervisors.

WASHINGTON, D. C., Oct. 7, 1893.

To the Editor of the Alexandria Gazette:

Dear Sir—The new Board of Supervisors desires to effect substantial reform in Alexandria county. In order that public attention may be directed to certain matters affecting the collection and disbursement of the county revenues and also to the salaries of certain officials, I desire you to publish the following opinions of Hon. John Critcher and Hon. R. Taylor Scott, Attorney General of Virginia, with notes inserted by myself. A special meeting of the Board of Supervisors is to be held Monday next at the County Court House, to take action upon financial matters wherein it appears that the laws of the State have been heretofore disregarded and to audit and settle the accounts of the County Treasurer.

Yours very truly,
R. HENRY PHILLIPS,
Supervisor.

OPINION OF HON. JOHN CRITCHER, ATTORNEY AT LAW, ALEXANDRIA, VA.

Is the Board of Supervisors Authorized to Increase the Pay of a County Officer Beyond the Maximum Salary Allowed by Law?

Not unless authorized by special act of Assembly. Of course this does not refer to services rendered by an officer not within his official duties.

What are the lawful commissions that the county treasurer may charge?

County treasurers, for receiving and disbursing the county and school levies, including all moneys collected by order of the county authorities for any purpose, are entitled to five per centum on amounts of $15,000 and less and on the amount in excess of $15,000 he is entitled to 3 per centum. Sec. 614, Code '87.

In counties in which the levies do not exceed $10,000 in addition to the 5 per cent. he shall receive 3 per cent. on all levies remaining unpaid on Dec. 1st, and collected by him. If the levies exceed $10,000 and do not exceed $15,000, he shall in addition to the 5 per cent. received 2 per cent. on all the levies remaining unpaid on the 1st of December and collected by him. Sec. 614, Code '87.

Acts of Assembly, 1887-'8, p. 337, Upon all funds turned over by any outgoing county treasurer, his successor, for receiving and disbursing said funds, shall have not more than 2 per cent. commission.

Note.—The treasurer's collections of county road and school levies amount to about $17,500. He has for many years kept separate accounts for each of these levies and has charged commissions on them separately at the highest rate for any collection, viz: 5 per cent. on amounts collected before Dec. 1st, and 8 per cent. on amounts collected after Dec. 1st.

The opinion of Hon. John Critcher is clear that the treasurer cannot divide his total collections into parts and estimate a commission on each part at a higher rate than that allowed for the total.

Acts of Assembly 1887-'8, p. 337. For his services in receiving and disbursing the county and school levies, including all moneys collected by order of the county authorities for any purpose, the county treasurer is allowed the same rate of compensation allowed by Sec. 613, for receiving and paying over the revenues.

The treasurer receives 5 per cent. on the first $15,000 and 3 per cent. on any excess, being his commission on the sum total of his collections; and not a commission on each of the several funds, otherwise he would not receive the same rate of compensation as the revenue collector, but a higher one.

What is the salary of the county judge?

Each judge receives a salary of $280 a year, and an additional compensation of $20 for every thousand inhabitants over 10,000, to be determined by the latest census. No fraction of a thousand to be counted unless it exceeds 500 in which case it shall be counted as one thousand.

This salary is a charge upon the county and is payable quarterly.

When the same person is judge of two counties the salary and mileage are paid in proportion to the inhabitants of each.

The inhabitants in the corporate limits of a city not to be take into the estimate. Sec. 185. Code of Virginia, census of 1890.

Population of Alexandria county 4 258.

Population of Fairfax county 16,655.

The population of the two counties for the purpose of estimating the judge's salary, would be 17,000 plus 4,000, or $21,000. Consequently, adding $220 to the $280 allowed the judge on his salary makes a total of $500 besides mileage.

As each county pays in proportion to the number of its inhabitants, Alexandria county would pay, besides its proportion of mileage, $102.00. But I find by act of assembly approved April, 2d, 1877, the board of supervisors of Alexandria county are authorized to increase the salary of the county judge to a sum not exceeding five hundred dollars per annum, and the supervisors may have acted under this law. Acts 76-77, p 306.

NOTE. Judge Chichester is now paid by Alexandria county $500 per annum, and by Fairfax county $400 per annum.

He resides in Fairfax county.

It is unnecessary to add that the amount paid by Alexandria county is entirely disproportionate. Fairfax county has four times the assessed value and population, and ten times the area of Alexandria county.

What is the salary of the Commissioner of Revenue?

He is paid partly in fees; but, in addition to his fees, he receives from the State Treasury (upon the warrant of the Auditor of Public Accounts) a commission of 2½ per cent. on the amount of taxes lawfully assessed by him on real and personal estate, income and salary, within the preceding twelve months.—Code of Va., 526.

NOTE.—The Commissioner of Revenue of Alexandria county is now paid a salary of $550 per annum by the Board of Supervisors without authority of law.

In what manner must accounts be presented to the Board of Supervisors?

Every account should be made out in separate items, specifically stated. Where no specific fees are allowed by law, the time actually and necessarily devoted to the performance of any service charged in such accounts shall be verified by affidavit to be filed therewith.

In what manner does the law of Virginia provide for the payment of county and circuit court allowances?

Copies of all orders and allowances made by the circuit and county courts payable out of the county treasury must be furnished by the clerks to the supervisors, on or before the day they meet to make the county levy. It is then the duty of the supervisors to make a levy for the payment of all such orders and allowances as the courts by law may be authorized to make.—Code of Va. Sec. 835.

After the levy has been made for the payment of any order or allowance, the warrant is signed by the clerk and countersigned by the chairman of the board and issued to the claimant; and no warrant can be issued except upon a recorded vote or resolution of the board. Sec. 851.

Under the Virginia code of 1873 the treasurer could pay warrants or orders legally drawn upon him by the circuit or county courts or the Board of Supervisors for the county. Ch. 46, p. 418.

But, under the code of '87, all moneys payable into the treasury of any county must be disbursed on warrants drawn by the Board of Supervisors for the county. Sec. 853, code of '87.

See also Sec. 859, where warrants drawn on him by the circuit and county courts are no longer authorized; only warrants drawn upon him by the Board of Supervisor of the county.

Sec. 833 makes it the duty of the Supervisors to examine, settle and allow *all* accounts chargeable against the county; and when so settled issue warrants therefor, as required by law.

Note—The county court has been issuing these allowances since 1887 certified to the treasurer for payment instead of to the Board of Supervisors. At the last term of the county court Judge Chichester, judge of the county court, threatened to put a member of the Board of Supervisors in jail for contempt of court, when he was politely and privately approached by the member with the request that the Board of Supervisors be allowed to appear by counsel when an application for court allowance was made in order that the method of payment of the allowance might be inquired into.

COMMONWEALTH OF VIRGINIA,
ATTORNEY GENERAL'S OFFICE,
WARRENTON VA., Oct. 3, 1893.

Mr. R. Henry Phillips, Supervisor &c:

Dear Sir—I regret that circumstances beyond my control have so long delayed reply to your letter of the 15th of September past, in which you enclosed your letter of the 8th of that month to State Auditor Marye.

You ask me can County Treasurers properly and lawfully pay allowances made by county judges, such as to special policemen, for special services for clerks, etc., directly upon the Court's order, or must the claim be presented to the Board of County Supervisors, audited and paid by it by warrants drawn upon the County Treasurer.

To the County Board of Supervisors is given the sole control and management of the county funds.

It must audit accounts and settle with the county officers, fix the county levy, levy the school tax, "examine, settle and allow all accounts chargeable against each county, and when so settled issue warrants therefore as provided by law." (Code 1887, C. 36, sections 833 834, etc.

All claims against counties including "court allowances" to be paid by the Treasurer. As I read and understand our statutes must be presented to the Board of County Supervisors, allowed, and warrants issued therefore upon the County Treasurer.

From the supervisors' decision upon claims presented to their appeal will lie to the County Court and where the rejected claims are the County Court allowances, appeal will lie to the Circuit Court. (Code 1887, C. 36, sections 838 and 839.

Very respectfully yours,
R. TAYLOR SCOTT,
Attorney General.

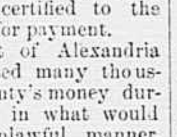
Note—The above letter appears to indicate beyond a doubt that all court allowances must be certified to the Board of Supervisors for payment.

The County Court of Alexandria county having disbursed many thousand dollars of the county's money during the past six years in what would appear to be an unlawful manner, would apparently owe the tax payers an apology, if not more, to say nothing of the slight wrong in tyranically threatening an officer of the county in open court inspecting this matter.

EXAMINATION FREE.

W. C. HICKS,

EYE SPECIALIST.



[Late of Queen & Co., of Philadelphia.]

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ADMINSTRATOR'S NOTICE.—Having qualified as administrator of C. B. HECKER, deceased, all persons having claims against the estate are hereby notified to present the same, duly authenticated, to me, and all persons indebted to said estate are requested to make immediate settlement.

K. KEMPER,
oct4 1m Administrator.

VACCINE—We have just received a supply of fresh Vaccine Points.
je22 E. S. LEADBEATER & SONS.

AUCTION SALES.

By R. F. Knox, Auctioneer.

TRUSTEE'S SALE OF LAND.

At the request of the holders of two of the notes secured by the deed of trust from Geo. C. Videtto to John M. Johnson, dated September 10, 1891, and recorded in liber L, No. 4, page 310, a land record of Alexandria county, Virginia, the undersigned will sell at public auction, on the premises, on

SATURDAY,
the 14th day of October, 1893,

at 12 o'clock m., upon the following terms: Enough of the purchase money in cash to pay the amount due on the notes secured by said deed—$14,281.38 and the expenses of sale, $718.62, in all $15,000—and the residue of the purchase money in two equal payments at six and twelve months from day of sale, with interest; the deferred payments to be evidenced by notes and secured by deed of trust—the TWO PARCELS OF LAND in Alexandria county, Virginia, conveyed by said deed except a lot in parcel No. 1, which was conveyed to Mary J. Kennedy by deed dated June 10, 1892, of record in liber O, No. 4, page 137, a land record of Alexandria county, being lot No. 1 in block 13 of PARK ADDITION TO ALEXANDRIA, Alexandria county, Virginia, according to plat and subdivision as recorded in liber N, No. 4, page 209, of said land records, to which reference is made for a description of said lot.

Parcel No. 1—Beginning at a point in the lands of James Duncan, the North West Alexandria Improvement Company and Geo. C. Videtto, 100 feet north of Alexandria avenue, and running thence N. 88°27' E. 3451.8-10 feet to the west line of the Washington Southern Railway Company; thence S. 125 feet to Alexandria avenue extended; thence westwardly to the line of the North West Alexandria Improvement Company, and thence N. 20' E. 100 feet to the point of beginning.

Parcel No. 2—Beginning at a stake in the south line of Alexandria avenue extended 150 feet from the west line of the Washington Southern Railway Company, and running thence S. 88°10' W. 3071 feet to a stake; thence N. 86°53' W. 73.44 feet to a stake; thence N. 68° W. 71 feet to a stake; thence S. 26' E. 172.69 feet to a stake; thence N. 88°10' E. 3212.33 feet, and thence N. 1° 50' W. 130 feet to the point of beginning, and all appurtenances thereunto belonging.

The above described property is known as Park Addition to Alexandria, Alexandria county, Virginia. It has been subdivided, and a plat thereof is recorded in liber N, No. 4, page 209. It is near St. Asaph Junction, on the Washington Southern Railway.

sep15 ts JOHN M. JOHNSON, Trustee.

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BOARDING and DAY SCHOOL FOR GIRLS.

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Total cost for session of nine months, including tuition and other fees, clothing board washing, text books, medical attendance, etc., about $175. Cost to State Students $145. Next session begins SEPTEMBER 21ST, 1893. For catalogue apply to

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ICE CREAM FREEZERS—Arctic, 3 qts., $1.50; 6 qts., $2.50; 8 qts., $3 each; White Mountain, 2 qts., $1.55; 3 qts., $1.90; 4 qts., $2.25; 8 qts., $3.60 each.

A TEN PER CENT. REDUCTION on every Tea Set, Chamber Set, Dinner Set, Library, Parlor, Banquet or Piano Lamp in the house.

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LIABILITIES,	4,976,626 5
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Losses paid in United States in 44 years. $52,740,048. This large sum in conjunction with the growth of the company's business, is evidence of the confidence of the public and the faithfulness with which its losses are adjusted and paid.

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Have on hand Gibson's XX, XXX, XXXX and pure Old Rye, Old Cabinet and Monogram Whiskies; also Baker's and Thompson's Pure Rye Whiskies, to which they invite the attention of the trade.

Orders from the country for merchandise shall receive prompt attention.

Consignments of Flour, Grain and Country Produce solicited, for which they guarantee the highest market prices and prompt returns.

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Goods delivered anywhere in city and vicinity.
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And is now prepared to furnish suits in all the latest styles and on reasonable terms.

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Gives the greatest satisfaction wherever used.

We will sell a $45 machine at $20.
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Besides we can give you a good machine, made by the same company, the usual price of which is $30, for $17.

All have a complete set of attachments with book of instructions. Two weeks' trial allowed. Can give all reference desired. Many have been in use in this city for ten years. Call and examine at

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INSECT POWDER.

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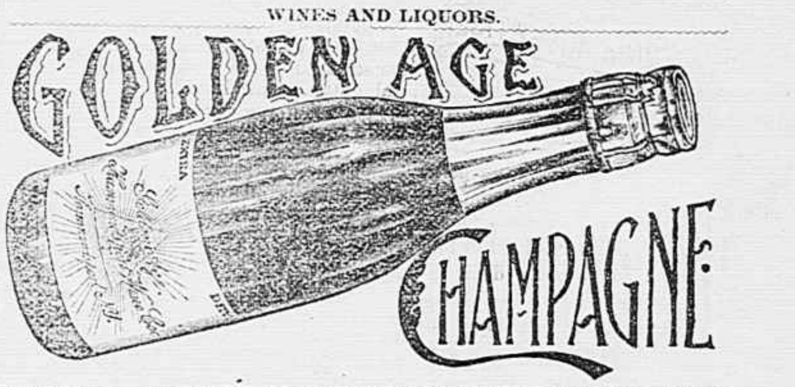

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WHY should you insure your life? 1st. Because in no other way can you secure to your family the profits arising from your work. 2nd. If you are poor, it gives protection to your family. 3rd. If you are rich it gives you a good investment.

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1st. Because you may die before doing so. 2nd. You may become uninsurable. 3rd. It certainly will cost you more if you delay.

WHERE should I insure my life?

With the Equitable Life Assurance Society of the United States.

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THE BEST OF LUNCHES.
CHOICE FAMILY SUPPLIES
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FRENCH PEAS, new crop, at
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FOR SALE AND RENT.

FOR SALE OR RENT.

The FARM on which I now reside about one and a-third miles from Alexandria, containing about 70 acres. I would rent the HOUSE separately if desired.

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A good YOUNG HORSE, suitable for quick wagon or carriage work; excellent saddle animal; very fast walk.

aug22 tf GEORGE R. HILL & CO.

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TWO NEW ENGLISH BASEMENT HOUSES on Prince street; beautiful houses with all modern improvements. Inquire of GLENN BROWN, Architect, F street, Washington, D. C., or of the undersigned.

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sep26 eo4t

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THIS FARM situated on the Telegraph Road one and a-half miles southwest of Alexandria, Va., and belonging to the estate of the late David A. Windsor, is now offered for sale, sixty acres with dwelling and all outbuildings. There is a peach orchard of three hundred trees, two years old in full bearing, grapery and other fruits. There are six acres of woodland.

The whole tract contains one hundred acres the remaining forty acres more or less, subject to the option of the purchaser. It is well fenced and all buildings are in good repair.

Land very fertile. Parties desiring to purchase will do well to inspect the premises, as no fancy prices will be asked, the same being sold to settle an estate.

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Hardware, Cutlery, Wagon Wheels,

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BARBED FENCING WIRE, BALING TIES, GRINDSTONES, &c.

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Vase Lamps, all shades, complete, $1.25.
Do., in three decorations, $2.
Do., centre-draft burners, 3 decorations, $2.75.
Do., $3.
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These are RARE BARGAINS, and if you need anything in this line you should not fail to look through. We can please you sure.

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